

9.	30-2025-01470501 Chastain vs. California Department of Transportation	1. Motion for Continuance-Other (Defendants' MSJ) Plaintiff, Chantal Erica Chastain, by and through Eric Chastain and Linda Chastain, as Conservators of Chantal Erica Chastain ("Plaintiff"), moves for an order continuing Defendant Ware Disposal, Inc.'s Motion for Summary Judgment, or in the Alternative, Summary Adjudication, and extending Plaintiff's opposition deadline, pursuant to Code of Civil Procedure section 437c(h) and California Rules of Court, rule 3.1332, to permit Plaintiff to receive and review outstanding discovery responses and to conduct further depositions essential to oppose the Motion for Summary Judgment. Plaintiff contends that the Motion for Summary Judgment, or in the Alternative, Summary Adjudication filed by Defendant, Ware Disposal, Inc. ("Ware") should be continued along with Plaintiff's deadline to file an opposition thereto as Ware has outstanding discovery responses and there are depositions that have yet to be taken, including the depositions of the person(s) most knowledgeable ("PMK") for Ware, as well as Defendants California Department of Transportation ("Caltrans") and Guy F. Atkinson Construction, LLC ("Atkinson"), which are necessary and essential to opposition Ware's motion for summary judgment. Plaintiff asserts that this discovery is necessary so that Plaintiff can meaningfully prepare an opposition to Ware's motion for summary judgment which rests on the factual contention that it bore no responsibility for the placement of the dumpster involved in the collision and exercised no control over the area, and argues that the reckless conduct of the vehicle owner, Dylan Douglas Glick ("Glick"), constitutes an unforeseeable intervening act that severs any causal connection between Ware's alleged conduct and Plaintiff's severe injuries such that it has no liability for Plaintiff's claims for premises liability and negligence. Ware contends that the motion is now partially moot as the deposition of Ware's PMK was completed on May 13, 2026, during which Plaintiff had the opportunity to obtain all the facts purportedly essential to contesting Ware's motion for summary judgment. Ware also contends that Ware's PMK made clear that Ware was not involved in the planning or safety of the project and thus has no information regarding Traffic Control Plans. Ware asserts that Plaintiff has not met her burden under section 437c(h) as the depositions of Caltrans' and Atkinson's PMKs are not essential to opposing Ware's motion for summary judgment, and that the discovery sought from these separate depositions would not address the fact of the unforeseeable conduct of Defendant Glick such that even if Plaintiff obtained this discovery, it would not produce evidence of any conduct leading up to the incident that would have permitted Ware a reasonable opportunity to prevent it, and thus, is not essential to opposing Ware's motion for summary judgment such that a continuance is not warranted. "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." (Code Civ. Proc. § 437c(h).) A continuance is a matter within the broad discretion of the court but is "virtually mandated 'upon a good faith showing by affidavit that a continuance is needed to obtain facts essential to justify opposition to the motion.'" [Citation.]' [Citation.]" (<i>Bahl v. Bank of America</i> (2001) 89 Cal.App.4th 389, 395.) Continuances are to be liberally granted." (<i>Ibid.</i>) "Where the opposing party submits an adequate affidavit showing that essential facts may exist but cannot be presented timely, the court must either deny summary judgment or grant a continuance. [Citation.]" (<i>Dee v. Vintage Petroleum, Inc.</i> (2003) 106 Cal.App.4th 30, 34-35.) "The nonmoving party seeking a
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continuance ‘must show: (1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts. [Citations.]’ [Citation.]” (*Fraze v. Seely* (2002) 95 Cal.App.4th 627, 633.) “[T]he affiant is not required to show that essential evidence does exist, but only that it may exist.” (*Id.* at p. 634.)

“The affidavit or declaration in support of the continuance request must detail the specific facts that would show the existence of controverting evidence. [Citations.]” (*Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 715 (“*Lerma*”).) “The party seeking the continuance must justify the need, by detailing both the particular essential facts that may exist and the specific reasons why they cannot then be presented.” (*Ibid.*) The declaration should also provide an estimate of the time necessary to obtain such evidence, and the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (Code Civ. Proc. § 437c(h); see *Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 420 [declaration that “additional information and testimony” required to “adequately respond to Defendant’s Motion” insufficient]; *Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 254 [merely stating “further discovery or investigation is contemplated” not sufficient].)

Here, Plaintiff’s motion is supported by the declaration of counsel, Kane Handel, who provides that outstanding discovery responses from Defendants remains due on May 26, 2026, which will likely require Plaintiff’s meet and confer as it has had to do with prior discovery responses by Ware, and that these responses are directly relevant to the issues raised in Ware’s motion for summary judgment and are essential for Plaintiff to prepare a meaningful opposition. (Declaration of Kane Handel, ¶ 10.)

With regards to the deposition of Ware’s PMK, there is no dispute that it was completed on May 13, 2026, as asserted in the opposition.

The reply contends that Ware’s PMK deposition did not eliminate the need for additional discovery, and instead, revealed additional factual issues, identified additional witnesses, i.e., Maria Juarez from Ware’s billing department, and disclosed the existence of additional responsive documents, i.e., hard-copy work orders referenced during the PMK deposition, that were not previously produced. Plaintiff also contends that Ware’s PMK lacked personal knowledge regarding whether any representative of Atkinson Construction was present when the subject dumpster was delivered, and could not establish who was actually present at the time of delivery, who accepted delivery, who directed placement, what instructions were given, or what communications occurred when the dumpster was delivered to the site. These assertions are not supported by evidence, such as a declaration.

While the motion and reply detail that facts essential to justify opposition that may exist to dispute Ware’s argument in its motion for summary judgment that it has no liability because Ware’s sole role in this incident was delivery and pick up of trash dumpsters, the declaration supporting the motion does not. Nor does the declaration discuss the depositions of Caltrans’ PMK and Atkinson’s PMK.

A continuance is not mandatory where the party opposing the motion fails to submit an affidavit that outstanding discovery could lead to evidence necessary to justify opposition, and it is not an abuse of discretion to deny a continuance under such circumstances. (*Scott v. CIBA Vision Corp.* (1995) 38 Cal.App.4th 307, 325-326.) Nonetheless, “[w]hen a continuance of a summary judgment motion is not mandatory, because of a failure to meet the requirements of Code of Civil

Procedure section 437c, subdivision (h), the court must determine whether the party requesting the continuance has nonetheless established good cause therefor.” (*Lerma, supra*, 120 Cal.App.4th at p. 716; see *Chavez v. 24 Hour Fitness USA, Inc.* (2015) 238 Cal.App.4th 632, 643, 644 [abuse of discretion to refuse continuance when papers showed proposed discovery “essential” to the opposition].) “That determination is within the court’s discretion. [Citations.]” (*Lerma, supra*, 120 Cal.App.4th at p. 716.)

In continuing a motion for summary judgment, a plaintiff has two options: (1) comply with Code of Civil Procedure section 437c, subdivision (h) and make a timely request for continuance along with the submission of a proper affidavit; or where the required showing under this subdivision cannot be made, (2) seek a continuance under the ordinary discretionary standard applied to requests for a continuance which requires a showing of good cause. (*Hamilton v. Orange County Sheriff’s Dept.* (2017) 8 Cal.App.5th 759, 764-765.) “ ‘[I]n deciding whether to continue a summary judgment to permit additional discovery courts consider various factors, including (1) how long the case has been pending; (2) how long the requesting party had to oppose the motion; (3) whether the continuance motion could have been made earlier; (4) the proximity of the trial date or the 30-day discovery cutoff before trial; (5) any prior continuances for the same reason; and (6) the question whether the evidence sought is truly essential to the motion.’ [Citation.]” (*Id.* at p. 765.)

Although Plaintiff has not presented an affidavit which sufficiently details that essential facts to justify opposition may exist, but cannot timely be presented, Plaintiff has provided sufficient good cause for a continuance for the completion of discovery, including the receipt of complete discovery responses from Ware, and the completion of the depositions of the PMKs for co-Defendants, Caltrans and Atkinson.

In addition, this case has been pending for less than one year and three months, the trial is currently set for July 6, 2027, there is no prior continuance, and the instant motion for continuance was filed on April 28, 2026, a little over three weeks after Ware filed its motion for summary judgment on April 3, 2026.

Under these circumstances, the Court finds that there is good cause for a continuance for the completion of discovery, including Ware’s responses to Plaintiff’s written discovery, and the depositions of the PMKs for Caltrans and Atkinson. Plaintiff’s **motion for continuance is therefore GRANTED.**

The Court will hear from the parties as to the status of this discovery and time necessary to complete this discovery prior to setting the new hearing date and continuing the trial.

In light of the foregoing, the Court will allow Plaintiff to submit **amended opposing papers** to replace the original opposing papers. Plaintiff to file and serve amended opposing papers no later than 20 days before the continued hearing date.

Ware may file and serve **amended reply papers** no later than 11 days before the continued hearing date.

Plaintiff to give notice.